

HOUSE BILL 1524

By Stevens

AN ACT to amend Tennessee Code Annotated, Title 49,
Chapter 6, relative to searches on school property.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-4204(a), is amended by deleting "subsection (a)" in subdivision (a)(2) and substituting "subdivision (a)(1)", designating the subsection as subdivision (a)(1), and adding the following as a new subdivision:

(2) If a school conducts a security screening through a weapons detection system and the weapons detection system triggers an alert on a container, package, or other enclosure in the possession of a student or visitor, then a school employee who has completed the training described in § 49-6-4212 and who is designated by the principal to conduct a search for purposes of this subdivision (a)(2) may search the container, package, or other enclosure that triggered the weapons detection system alert. This subdivision (a)(2) does not authorize a search of an enclosure that is part of a student's or visitor's clothing for which the student or visitor is wearing.

SECTION 2. Tennessee Code Annotated, Section 49-6-4212(a)(3), is amended by deleting the subdivision and substituting:

(3) A school administrator or school employee designated by a school principal for purposes of § 49-6-4204(a)(2) must complete the orientation and training developed by the department pursuant to subdivision (a)(1) prior to conducting a search pursuant to § 49-6-4204(a)(1)(B)(iii), § 49-6-4204(a)(2), or § 49-6-4205(a)(2)(C).

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.